

SENATE No. 73

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the Department of Fish and Game.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>3/6/2025</i>
<i>Joan B. Lovely</i>	<i>Second Essex</i>	<i>10/6/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>10/8/2025</i>

SENATE No. 73

By Mr. Tarr, a petition (accompanied by bill, Senate, No. 73) of Bruce E. Tarr and Michael O. Moore for legislation to expand programs under the Department of Fish and Game. Agriculture.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the Department of Fish and Game.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 8 of chapter 21A of the general laws, as appearing in the 2022
2 official edition, is hereby amended by striking out, in the seventh paragraph, the words “public
3 access board,” and “and the”.

4 SECTION 2. Section 8 of chapter 21A is hereby further amended by inserting, in the
5 seventh paragraph, after the word “commission” the following words:- “, division of fishing and
6 boating access, and division of ecological restoration.”

7 SECTION 3. Section 8 of chapter 21A is hereby further amended by striking out, in the
8 eighth paragraph, everything after the phrase “public access” and inserting in place thereof the
9 following words:- “as recommended by the division of fishing and boating access.”

10 SECTION 4. Said chapter 21A is hereby further amended by striking out section 11B, as
11 appearing in the 2022 official edition, and inserting in place thereof the following section:-

Section 11B. There shall be a division of fishing and boating access in the department of fish and game. The division shall be under the administrative supervision of a director who shall be called the director of fishing and boating access. Said director shall be appointed and may be removed by the commissioner of the department of fish and game. The director, or a designee, shall serve as the chief engineer of the division of fishing and boating access and the department. The division may site, design, construct, operate, repair and maintain public access facilities, including, but not limited to, boat launching ramps, car-top boat access areas, sportfishing piers, shorefishing areas, and parking areas, which shall provide public access to great ponds and other waters within the commonwealth for recreational fishing and boating. Said public access facilities may be located on lands owned by or in which a federal, state, regional or municipal entity has a property interest with the consent of said entity or on lands owned by or in which the department has a property interest. For public access facilities located on lands under the ownership or control of a public entity other than the department, the division may enter into a land management agreement with said public entity in which said public entity assumes responsibility for the operation and maintenance of said public access facility and for any other activity agreed to by the division and the public entity. The division may provide safety, rescue, patrol and maintenance equipment to public entities that have responsibilities for law enforcement or management of public lands. The division may promulgate regulations governing the use of said public access facilities and the related land and water resources, violation of which may be punished by a fine of not more than \$100 and which may be enforced by any employee of the commonwealth, or of a city or town, having police powers.

In addition to its authority and responsibilities associated with public access facilities, the division may provide engineering, construction, and technical services to the division of fisheries

and wildlife, the division of marine fisheries, and the division of ecological restoration within the department of fish and game.

SECTION 5. Said chapter 21A is hereby further amended by inserting after section 11B the following section:-

Section 11BB. There shall be a division of ecological restoration in the department of fish and game. The division shall be under the administrative supervision of a director who shall be called the director of the division of ecological restoration. Said director shall be appointed and may be removed by the commissioner of the department of fish and game. The division shall work with public and non-public entities, including tribal entities, to protect and restore rivers, wetlands, and watersheds for the benefit of people and the environment, including to foster adaptation to climate change. The division may provide technical assistance and training; manage river and wetland restoration projects, including but not limited to dam removal, culvert upgrades, and wetland and salt marsh restoration; receive grants; award grants to public and nonpublic entities; contract for services; enter into agreements with public and non-public entities; and lead other activities as needed to carry out the purpose of the division.

SECTION 6. Section 98 of chapter 130 of the general laws, as appearing in the 2022 official edition, is hereby amended by striking out, in the first paragraph, the words “the shellfish wardens training course at the Massachusetts Maritime Academy as certified by said academy” and inserting in place thereof the following words:- a shellfish wardens training course as certified by the division.